

Memo.No.3325/SC.E/86-1, Genl.Admn. (SC.E) Dept., dt.02.12.1986 regarding entrustment of inquiries to Commissioner of Inquiries.

Subject Heading : Commissioner of Inquiries - entrustment of inquiries

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Ref : Govt.Memo.No.1496/SC.E/86-2, G.A.(SC.E) Dept.,dt.08.08.86.

In para (2)(i) of the Memorandum cited, instructions have been issued among others, that all cases enquired into by the Anti-Corruption Bureau, and recommended for departmental action would henceforth be referred to the Commissioner for Departmental Enquiries under the APCS (CC&A) Rules, 1963.

2. In view of the above, all cases of enquiries irrespective of the category recommended for departmental action have to be referred to the Commissioner for Departmental Enquiries for enquiry and report. This is likely to result in heavy work load to the Commissioner for Departmental Enquiries.

3. In the circumstances, the matter has been further examined and it has now been decided that only disciplinary cases of persons recommended for departmental action after enquiry by Anti Corruption Bureau, in whose case the appointing authority is either the Government or the Head of Department, should be referred to the Commissioner for Departmental Enquiries. In all cases other than the above which have been enquired into by the Anti-Corruption Bureau and recommended for departmental action, the Department may entrust the matter in consultation with the Anti-Corruption Bureau to the appointing authority concerned for disposal in accordance with Rule 19(2) of APCS (CC&A) Rules, 1963.